

KMVTECH EDUCATION**CEL1 · Module 5****EIA and licensing**

Lesson: Before projects proceed

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

Environmental Impact Assessment (EIA) is the principal ex-ante tool for integrating environmental considerations into project decisions. It typically involves screening, scoping, study, public participation, review, decision and monitoring.

Projects are classified by likely impact; those with significant effects require full EIA and approval before implementation. Strategic Environmental Assessment (SEA) applies to policies, plans and programmes.

Licensing and permit regimes (effluent, emissions, abstraction, waste, wildlife) operationalise ongoing control. Conditions, monitoring and reporting attach to approvals.

- Public participation is both a legal requirement and a quality-control mechanism; inadequate participation is a frequent ground of challenge.

2. DETAILED RULES AND APPLICATION

Example: a proposed industrial plant near a residential area and river will be screened into full EIA; failure to consult affected communities or to assess cumulative impacts can invalidate the approval.

No significant project should proceed without the correct level of assessment and a reasoned approval that addresses the key impacts and conditions.

3. UGANDA / PRACTICE, METHOD AND TRAPS

Uganda's EIA regulations under the National Environment Act set detailed procedures. Courts have quashed projects for procedural and substantive EIA failures. Post-approval monitoring remains a weak link.

Exam trap: treating EIA as a rubber stamp or ignoring the duty to consider alternatives and cumulative effects.

Method: classify the project → determine required assessment level → check screening/scoping/study/participation/review steps → examine the approval decision and conditions → plan monitoring and enforcement.

EIA is the gateway; licensing is the continuing control.

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. What are the main stages of EIA?
2. When is full EIA required?
3. What is Strategic Environmental Assessment?
4. Why is public participation mandatory?
5. What follows a positive EIA decision?
6. Name two common grounds for challenging an EIA approval.

Exam tip: Correct assessment level + genuine participation + reasoned decision.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.